rally content based.[6] See *R. A. V.*, 505 U. S., at 383 (kinds of speech like "obscenity, defamation, etc." may "be regulated because of their constitutionally proscribable content" (emphasis deleted)); see also *Bethel School Dist. No. 403* v. *Fraser*, 478 U. S. 675, 685 (1986) (treating punishment of "offensively lewd and indecent speech" as viewpoint neutral); *Pacifica*, 438 U. S., at 745–746, and n. 22 (treating regulation of profane monologue as viewpoint neutral). Indeed, the statute that the Court upheld in *Chaplinsky* itself had been construed to cover, among other kinds of "disorderly words," "profanity, obscenity and threats," 315 U. S., at 573, despite the fact that such words had been used in that case to communicate an expressive message, *id.*, at 574. To treat a restriction on vulgarity, profanity, or obscenity as viewpoint discrimination would upend decades of precedent.[7]

Brunetti invokes *Cohen* v. *California*, 403 U. S. 15 (1971), to argue that the restriction at issue here is viewpoint discriminatory. But *Cohen*—which did not employ the precise taxonomy that is more common today—does not reach as far as Brunetti wants. *Cohen* arose in the criminal context: Cohen had been arrested and imprisoned under a California

[6] Of course, obscenity itself is subject to a longstanding exception to First Amendment protection, see *Brown* v. *Entertainment Merchants Assn.*, 564 U. S. 786, 791 (2011), so it is proscribable in any event. As for vulgarity and profanity, however, they are not subject to any such exception, and a regulation like § 1052(a)'s ban on the registration of scandalous marks is not " 'justified without reference to the content of the regulated speech' " in the way that a simple regulation of time, place, or manner is. *Ward* v. *Rock Against Racism*, 491 U. S. 781, 791 (1989) (emphasis deleted).

[7] It would also risk destabilizing government practice in a number of other contexts. Governments regulate vulgarity and profanity, for example, on city-owned buses and billboards, *e. g.*, *American Freedom Defense Initiative* v. *Massachusetts Bay Transp. Auth.*, 989 F. Supp. 2d 182, 183 (Mass. 2013) (noting such a prohibition), on registered vessels, 46 CFR § 67.117(b)(3) (Coast Guard regulations), and at school events, *e. g.*, *Bethel School Dist. No. 403* v. *Fraser*, 478 U. S. 675, 677–678, 685 (1986) (upholding discipline of high school student).

criminal statute targeting disturbances of the peace because he was "wearing a jacket bearing the words 'F[***] the Draft.'" *Id.*, at 16. The Court held that applying that statute to Cohen because of his jacket violated the First Amendment. *Id.*, at 26. But the Court did not suggest that the State had targeted Cohen to suppress his view itself (*i. e.*, his sharp distaste for the draft), such that it would have accepted an equally colorful statement of praise for the draft (or hostility toward war protesters). Rather, the Court suggested that the State had simply engaged in what later courts would more precisely call viewpoint-neutral content discrimination—it had regulated "the form or content of individual expression." *Id.*, at 24; see *id.*, at 25–26.

Cohen also famously recognized that "words are often chosen as much for their emotive as their cognitive force," *id.*, at 26, and that "one man's vulgarity is another's lyric," *id.*, at 25. That is all consistent with observing that a plain, blanket restriction on profanity (regardless of the idea to which it is attached) is a viewpoint-neutral form of content discrimination. The essence of *Cohen*'s discussion is that profanity can serve to tweak (or amplify) the viewpoint that a message expresses, such that it can be hard to disentangle the profanity from the underlying message—without the profanity, the message is not quite the same. See *id.*, at 25–26. But those statements merely reinforce that profanity is still properly understood as protected First Amendment content. See also *R. A. V.*, 505 U. S., at 384–385. *Cohen*'s discussion does not also go further to declare, as Brunetti suggests, that a provision that treats all instances of profanity equally is nevertheless by nature an instance of "the government target[ing] . . . particular views taken by speakers on a subject." *Rosenberger*, 515 U. S., at 829. To be sure, such a restriction could have the incidental effect of tamping down the overall volume of debate on all sides. But differential effects alone, as explained above, do not render a restriction viewpoint (or even content) discriminatory. See *Ward*, 491 U. S., at 791–792.[8]

Cohen therefore does not resolve this case in Brunetti's favor. Yes, Brunetti has been, as Cohen was, subject to content discrimination, but that content discrimination is properly understood as viewpoint neutral. And whereas even viewpoint-neutral content discrimination is (in all but the most compelling cases, such as threats) impermissible in the context of a criminal prosecution like the one that Cohen faced, Brunetti is subject to such regulation only in the context of the federal trademark-registration system. I discuss next why that distinction matters.

B

While the Court has often subjected even viewpoint-neutral content discrimination to strict constitutional scrutiny, see, *e. g., Reed*, 576 U. S., at 163–164, there are contexts in which it does not, see, *e. g., Rosenberger*, 515 U. S., at 829–830. When that is the case, the difference between viewpoint-based and viewpoint-neutral content discrimination can be decisive. The federal trademark-registration system is such a context.

Rights to a trademark itself arise through use, not registration. Regardless of whether a trademark is registered,

[8] That does not mean, of course, that a government may elude harsher scrutiny or invalidation of a regulation by simply claiming disinterest in a speaker's message, see *United States* v. *Eichman*, 496 U. S. 310, 315–317 (1990), or by concealing an attempt to favor some views over others in superficially neutral garb, see *Renton* v. *Playtime Theatres, Inc.*, 475 U. S. 41, 46–49 (1986); cf. *Church of Lukumi Babalu Aye, Inc.* v. *Hialeah*, 508 U. S. 520, 533–534 (1993). But there is no evidence in the record from which to conclude that Congress enacted the scandalous-marks provision in order to advantage certain views over others. And where a denial of trademark registration by the PTO raises such a concern, it would be proper for an applicant to bring an as-applied challenge. See *infra*, at 426.

it can be used, owned, and enforced against would-be infringers. See *B&B Hardware, Inc.* v. *Hargis Industries, Inc.*, 575 U. S. 138, 142, 144 (2015). Trademark registration, meanwhile, confers several ancillary benefits on trademark-holders who meet Congress' specifications, including, for example, additional protections against infringers. See *ante,* at 391; *Tam*, 582 U. S., at 226–227. Registering a mark in the Government's searchable register puts the world on notice (whether actual or constructive) that a party is asserting ownership of that mark.[9] Registration, in short, is a helpful system, but it is one that the Government is under no obligation to establish and that is collateral to the existence and use of trademarks themselves. There is no evidence that speech or commerce would be endangered if the Government were not to provide it at all.

When the Court has talked about governmental initiatives like this one before, it has usually used one of two general labels. In several cases, the Court has treated such initiatives as a limited public (or nonpublic) forum. See, *e. g.*, *Christian Legal Soc. Chapter of Univ. of Cal., Hastings College of Law* v. *Martinez*, 561 U. S. 661, 669–670, 682 (2010) ("'Registered Student Organization'" program providing various financial and nonfinancial benefits to recognized law-school student groups); *Rosenberger*, 515 U. S., at 823–824, 829–830 ("Student Activities Fund" for registered campus student groups); *Cornelius* v. *NAACP Legal Defense & Ed. Fund, Inc.*, 473 U. S. 788, 790–791, 799–801, 806 (1985) ("Combined Federal Campaign" literature enabling approved charitable organizations to solicit donations from federal employees). In other situations, the Court has discussed similar initiatives as government programs or subsidies. See, *e. g.*, *Legal Services Corporation* v. *Velazquez*, 531 U. S. 533, 536, 543–544 (2001) (government program dis-

[9] See 15 U. S. C. § 1072; U. S. Patent & Trademark Office, Search Trademark Database, https://www.uspto.gov/trademarks-application-process/search-trademark-database (as last visited June 20, 2019).

tributing funds to legal-services organizations); *National Endowment for Arts* v. *Finley*, 524 U. S. 569, 573, 585–587 (1998) (competitive government grantmaking program to support the arts).[10] In each of these situations, a governmental body established an initiative that supported some forms of expression without restricting others. Some speakers were better off, but no speakers were worse off.

Regardless of the finer distinctions between these labels, reasonable, viewpoint-neutral content discrimination is generally permissible under either framework. See *Christian Legal Soc.*, 561 U. S., at 679 ("Any access barrier must be reasonable and viewpoint neutral"); *Velazquez*, 531 U. S., at 543–544, 548–549 (analogizing to limited-forum cases and explaining that "[w]here private speech is involved, even Congress' antecedent funding decision cannot be aimed at the suppression of ideas thought inimical to the Government's own interest"); see also *Ysursa* v. *Pocatello Ed. Assn.*, 555 U. S. 353, 355 (2009) (finding government conduct that did not restrict speech but simply "decline[d] to promote" it valid where it was "reasonable in light of the State's interest"). Perhaps for that reason, the Court has often discussed the two frameworks as at least closely related. See, *e. g.*, *Christian Legal Soc.*, 561 U. S., at 682 ("[T]his case fits comfortably within the limited-public-forum category, for [the plaintiff], in seeking what is effectively a state subsidy,

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[10] In *Tam*, four Justices concluded that cash-subsidy programs like the one in *Finley* were "not instructive in analyzing" trademark registration. 582 U. S., at 241 (opinion of ALITO, J.). Trademark registration differs, of course, because any "subsidy" comes in the form of a noncash benefit, but that difference does not foreclose understanding the registration system as a beneficial, noncash governmental program. No Justice, meanwhile, rejected the limited-public-forum analogy, see *id.*, at 243–244, and n. 16 (calling such cases "[p]otentially more analogous" and reserving the question), and scholars have noted arguments for adopting it. See Snow 2364–2366; Katyal, Trademark Intersectionality, 57 UCLA L. Rev. 1601, 1676–1681 (2010); Lefstin, Note, Does the First Amendment Bar Cancellation of REDSKINS? 52 Stan. L. Rev. 665, 706–707 (2000).

faces only indirect pressure . . . "); *Velazquez*, 531 U. S., at 544 ("As this suit involves a subsidy, limited forum cases . . . may not be controlling in a strict sense, yet they do provide some instruction").

Whichever label one chooses here, the federal system of trademark registration fits: It is, in essence, an opportunity to include one's trademark on a list and thereby secure the ancillary benefits that come with registration.[11] Just as in the limited-forum and government-program cases, some speakers benefit, but no speakers are harmed. Brunetti, for example, can use, own, and enforce his mark regardless of whether it has been registered. Whether he may register his mark can therefore turn on reasonable, viewpoint-neutral content regulations.[12]

C

Prohibiting the registration of obscene, profane, or vulgar marks qualifies as reasonable, viewpoint-neutral, content-based regulation. Apart from any interest in regulating commerce itself, the Government has an interest in not promoting certain kinds of speech, whether because such speech could be perceived as suggesting governmental favoritism or simply because the Government does not wish to involve itself with that kind of speech. See, *e. g.*, *Ysursa*, 555 U. S., at 359–360; *Cornelius*, 473 U. S., at 809. While "there is no evidence that the public associates the contents of trademarks with the Federal Government," *Tam*, 582 U. S., at 238, registration nevertheless entails Government involvement in

[11] Not every registration system would necessarily fit the same bill, whether because not every such system invites expressive content like trademarks or simply because other forms of registration may not be so ancillary as to qualify solely as a "benefit."

[12] Though I do not address the constitutionality of provisions not before the Court, I note as well that the "scandalous" bar in § 1052(a) is hardly the only provision in § 1052 that could be characterized as content discriminatory. See, *e. g.*, § 1052(b) (no flags or insignias); § 1052(c) (no unapproved markers of deceased U. S. Presidents during the lives of their spouses).

promoting a particular mark. Registration requires the Government to publish the mark, as well as to take steps to combat international infringement. See 15 U. S. C. §§ 1062, 1124; see also Brief for Petitioner 35. The Government has a reasonable interest in refraining from lending its ancillary support to marks that are obscene, vulgar, or profane. Cf. *Hustler Magazine, Inc.* v. *Falwell*, 485 U. S. 46, 56 (1988) ("[S]peech that is vulgar, offensive, and shocking is not entitled to absolute constitutional protection under all circumstances" (internal quotation marks omitted)).

III

"The cardinal principle of statutory construction is to save and not to destroy." *Jones & Laughlin Steel Corp.*, 301 U. S., at 30; see also *Hooper* v. *California*, 155 U. S. 648, 657 (1895) ("The elementary rule is that every reasonable construction must be resorted to, in order to save a statute from unconstitutionality"). In directing the PTO to deny the ancillary benefit of registration to trademarks featuring "scandalous" content, Congress used a word that is susceptible of different meanings. The majority's reading would render the provision unconstitutional; mine would save it. Under these circumstances, the Court ought to adopt the narrower construction, rather than permit a rush to register trademarks for even the most viscerally offensive words and images that one can imagine.[13]

That said, I emphasize that Brunetti's challenge is a facial one. That means that he must show that "'a substantial number of [the scandalous-marks provision's] applications are

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[13] As noted above, I agree with the majority that § 1052(a)'s bar on the registration of "immoral" marks is unconstitutional viewpoint discrimination. See *supra*, at 410. I would simply sever that provision and uphold the bar on "scandalous" marks. See *Reno* v. *American Civil Liberties Union*, 521 U. S. 844, 882–883 (1997); *Brockett* v. *Spokane Arcades, Inc.*, 472 U. S. 491, 504–507 (1985); see also *Tam*, 582 U. S., at 247 (striking down only the disparagement clause).

unconstitutional, judged in relation to the [provision's] plainly legitimate sweep.'" *United States* v. *Stevens*, 559 U. S. 460, 473 (2010). With "scandalous" narrowed to reach only obscene, profane, and vulgar content, the provision would not be overly broad. Cf. *Frisby*, 487 U. S., at 488 (rejecting a facial challenge after adopting a limiting construction); *Boos*, 485 U. S., at 331 (same). Even so, hard cases would remain, and I would expect courts to take seriously as-applied challenges demonstrating a danger that the provision had been used to restrict speech based on the views expressed rather than the mode of expression.[14] Cf. *Finley*, 524 U. S., at 587 (reserving the possibility of as-applied challenges).

Freedom of speech is a cornerstone of our society, and the First Amendment protects Brunetti's right to use words like the one at issue here. The Government need not, however, be forced to confer on Brunetti's trademark (and some more extreme) the ancillary benefit of trademark registration, when "scandalous" in § 1052(a) can reasonably be read to bar the registration of only those marks that are obscene, vulgar, or profane. Though I concur as to the unconstitutionality of the term "immoral" in § 1052(a), I respectfully dissent as to the term "scandalous" in the same statute and would instead uphold it under the narrow construction discussed here.

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[14] The majority adverts to details in the record that could call into question whether the PTO engaged in viewpoint discrimination in this very case. See *ante*, at 392. Because a facial challenge is the only challenge before the Court, I do not address whether an as-applied challenge could have merit here.

FOOD MARKETING INSTITUTE *v.* ARGUS LEADER MEDIA, DBA ARGUS LEADER

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE EIGHTH CIRCUIT

No. 18–481. Argued April 22, 2019—Decided June 24, 2019

Respondent Argus Leader Media filed a Freedom of Information Act (FOIA) request with the United States Department of Agriculture (USDA), seeking the names and addresses of all retail stores that participate in the national food-stamp program—known as the Supplemental Nutrition Assistance Program (SNAP)—and each store's annual SNAP redemption data from fiscal years 2005 to 2010. The USDA declined to disclose the store-level SNAP data, invoking FOIA's Exemption 4, which shields from disclosure "trade secrets and commercial or financial information obtained from a person and privileged or confidential," 5 U. S. C. § 552(b)(4). Argus Leader sued the USDA. Following circuit precedent, the District Court employed the "competitive harm" test, under which commercial information cannot be deemed "confidential" unless disclosure is "likely . . . to cause substantial harm to the competitive position of the person from whom the information was obtained." The court agreed that revealing store-level SNAP data could work some competitive harm, but it could not say that disclosure would cause "substantial competitive harm," and thus ordered disclosure. Petitioner Food Marketing Institute, a trade association representing grocery retailers, intervened and filed an appeal. The Eighth Circuit affirmed, rejecting the Institute's argument that the court should discard the "substantive competitive harm" test in favor of the ordinary public meaning of the statutory term "confidential."

Held:

1. The Institute has standing to appeal. Disclosure of the contested data would cause its members some financial injury in the highly competitive grocery industry; this concrete injury is directly traceable to the judgment ordering disclosure; and a favorable ruling from this Court would redress the retailers' injury by reversing that judgment. Pp. 432–433.

2. Where commercial or financial information is both customarily and actually treated as private by its owner and provided to the government under an assurance of privacy, the information is "confidential" within Exemption 4's meaning. Pp. 433–440.

Syllabus

(a) At the time of FOIA's enactment, the term "confidential" meant "private" or "secret." Contemporary dictionaries suggest two conditions that might be required for information communicated to another to be considered confidential: when the information is customarily kept private, or at least closely held, by the person imparting it; and when the party receiving the information provides some assurance that it will remain secret. At least the first of these conditions must be met; it is hard to see how information could be deemed confidential if its owner shares it freely. But the Court need not resolve whether both conditions are necessary because both conditions are clearly met here. Uncontested testimony established that the Institute's retailers customarily do not disclose store-level SNAP data or make it publicly available. And to induce retailers to participate in SNAP and provide store-level information, the government has long promised retailers that it will keep their information private. Early courts of appeals confronting Exemption 4 interpreted its terms in ways consistent with these understandings. Pp. 433–435.

(b) Argus Leader pins its hopes on the "substantial competitive harm" requirement from the D. C. Circuit's decision in *National Parks & Conservation Assn.* v. *Morton*, 498 F. 2d 765. There, the court inappropriately resorted to legislative history before consulting the statute's text and structure and relied heavily on statements from witnesses in congressional hearings years earlier on a different bill that was never enacted into law. Unsurprisingly, *National Parks* has drawn considerable criticism over the years, and even the D. C. Circuit has distanced itself from the decision. Pp. 435–438.

(c) Argus Leader's attempt to salvage *National Parks* is unpersuasive. First, it rearranges the text of Exemption 4 to create a phrase that does not appear in the statute: "confidential commercial information." It suggests that this synthetic term mirrors a preexisting common law term of art that covers only information whose release would lead to substantial competitive harm, but points to no treatise or case decided before Exemption 4's adoption that assigned any such meaning to the terms actually before the Court. Nor will this Court ordinarily imbue statutory terms with a specialized common law meaning when Congress has not itself invoked the common law terms of art associated with that meaning. See, *e. g.*, *Bruesewitz* v. *Wyeth LLC*, 562 U. S. 223, 233–235. Alternatively, the company suggests that Congress effectively ratified its understanding of the term "confidential" by enacting similar phrases in other statutes in the years since *National Parks* was decided. But the ratification canon applies when Congress re-enacts the same statute using the same language, and Congress has never re-enacted Exemption 4. Finally, Argus Leader urges the Court to adopt a "substantial competitive harm" requirement as a matter of policy because it believes FOIA exemptions should be narrowly construed. But the Court cannot arbitrarily constrict Exemption 4 by adding limitations found nowhere in its terms. Pp. 438–440.

889 F. 3d 914, reversed and remanded.

Gorsuch, J., delivered the opinion of the Court, in which Roberts, C. J., and Thomas, Alito, Kagan, and Kavanaugh, JJ., joined. Breyer, J., filed an opinion concurring in part and dissenting in part, in which Ginsburg and Sotomayor, JJ., joined, *post*, p. 440.

Evan A. Young argued the cause for petitioner. With him on the briefs were *Thomas R. Phillips*, *Gavin R. Villareal*, *Scott A. Keller*, *Stephanie F. Cagniart*, and *Ellen Springer*.

Anthony A. Yang argued the cause for the United States as *amicus curiae* urging reversal. With him on the brief were *Solicitor General Francisco*, *Assistant Attorney General Hunt*, *Deputy Solicitor General Kneedler*, and *H. Thomas Byron III*.

Robert M. Loeb argued the cause for respondent. With him on the brief were *Thomas M. Bondy*, *Randall C. Smith*, and *Jon E. Arneson*.*

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*Briefs of *amici curiae* urging reversal were filed for the Alliance of Marine Mammal Parks & Aquariums et al. by *Ira Kasdan* and *Bezalel Stern*; for the Chamber of Commerce of the United States of America et al. by *John P. Elwood*, *Joshua S. Johnson*, *Daryl L. Joseffer*, *Karen R. Harned*, and *Luke A. Wake*; for the National Association of Convenience Stores et al. by *Shannen W. Coffin*; and for Retail Litigation Center, Inc., by *Adam G. Unikowsky* and *Deborah R. White*.

Briefs of *amici curiae* urging affirmance were filed for the AI Now Institute et al. by *Lucinda M. Finley*, *Jason M. Schultz*, *David D. Cole*, *Brett Max Kaufman*, *Nathan Freed Wessler*, *Deborah N. Archer*, *Vincent M. Southerland*, *David L. Sobel*, and *Alex Abdo*; for American Small Business League by *Karl Olson*; for Bioscience Advisors, Inc., by *Robert S. Clark* and *Chad S. Pehrson*; for the Cause of Action Institute et al. by *Ryan P. Mulvey*, *R. James Valvo III*, *Anne Weismann*, and *Allan Blutstein*; for the Electronic Privacy Information Center et al. by *Marc Rotenberg* and *Alan Butler*; for Freedom of Information Act Scholars et al. by *Michael C. Dorf*, *pro se*; for New Hampshire Right to Life by *Michael J. Tierney*, *John J. Bursch*, *David A. Cortman*, and *Rory T. Gray*;

JUSTICE GORSUCH delivered the opinion of the Court.

Congress has instructed that the disclosure requirements of the Freedom of Information Act do "not apply" to "confidential" private-sector "commercial or financial information" in the government's possession. But when does information provided to a federal agency qualify as "confidential"? The Food Marketing Institute says it's enough if the owner keeps the information private rather than releasing it publicly. The government suggests that an agency's promise to keep information from disclosure may also suffice to render it confidential. But the courts below imposed a different requirement yet, holding that information can never be deemed confidential unless disclosing it is likely to result in "substantial competitive harm" to the business that provided it. Finding at least this "competitive harm" requirement inconsistent with the terms of the statute, we reverse.

I

This case began when Argus Leader, a South Dakota newspaper, filed a FOIA request for data collected by the United States Department of Agriculture. The USDA administers the national food-stamp program, known as the Supplemental Nutrition Assistance Program. Argus Leader asked the USDA for the names and addresses of all retail stores that participate in SNAP and each store's annual SNAP redemption data from fiscal years 2005 to 2010, which we refer to as "store-level SNAP data." The USDA

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for Public Citizen et al. by *Allison M. Zieve*, *Adina H. Rosenbaum*, and *Scott L. Nelson*; and for the Reporters Committee for Freedom of the Press et al. by *Bruce D. Brown*, *Kevin M. Goldberg*, *David M. Giles*, *David Bralow*, *Kurt Wimmer*, *George Freeman*, *James Cregan*, *Tonda F. Rush*, *Mickey H. Osterreicher*, *Jonathan Hart*, *Micah Ratner*, *Robert A. Bertsche*, *Barbara L. Camens*, *Laura R. Handman*, *Alison Schary*, *Thomas R. Burke*, *Richard J. Tofel*, and *Bruce W. Sanford*.

Ghita Schwarz and *Jennifer B. Condon* filed a brief of *amicus curiae* for the Detention Watch Network et al.

tried to meet the paper halfway. It released the names and addresses of the participating stores but declined to disclose the requested store-level SNAP data. As relevant here, the USDA invoked FOIA's Exemption 4, which shields from disclosure "trade secrets and commercial or financial information obtained from a person and privileged or confidential." 5 U. S. C. § 552(b)(4).

Unsatisfied by the agency's disclosure, Argus sued the USDA in federal court to compel release of the store-level SNAP data. Like several other courts of appeals, the Eighth Circuit has engrafted onto Exemption 4 a so-called "competitive harm" test, under which commercial information cannot be deemed "confidential" unless disclosure is "likely . . . to cause substantial harm to the competitive position of the person from whom the information was obtained." *Argus Leader Media* v. *United States Dept. of Agriculture*, 889 F. 3d 914, 915 (2018) (internal quotation marks omitted). So the district court held a 2-day bench trial to determine whether disclosure of the store-level SNAP data would cause substantial competitive harm to participating retailers.

At trial, witnesses for the USDA testified that retailers closely guard store-level SNAP data and that disclosure would threaten stores' competitive positions. They explained that retailers use models of consumer behavior to help choose new store locations and to plan sales strategies. Competitors' estimated sales volumes represent an important component of these models and can be time consuming and expensive to generate. And a model's accuracy and utility increase significantly if it includes a rival's actual sales data rather than mere estimates. So disclosure of store-level SNAP data could create a windfall for competitors: Stores with high SNAP redemptions could see increased competition for SNAP customers from existing competitors, new market entrants could use SNAP data to determine where to build their stores, and SNAP-redemption data could be used to discern a rival retailer's overall sales and develop strategies to win some of that business too. For its part, Argus Leader offered no fact witnesses and did not dispute that retailers customarily keep this data private or that it bears competitive significance. Instead, the company contended that any competitive harm associated with disclosure would not be substantial. In the end, the district court agreed; while "[c]ompetition in the grocery business is fierce," and while the record supported the conclusion that revealing store-level SNAP data could work some competitive harm, the court could not say that disclosure would rise to the level of causing "*substantial* competitive harm," and thus ordered disclosure. *Argus Leader Media* v. *United States Dept. of Agriculture*, 224 F. Supp. 3d 827, 833–835 (SD 2016) (emphasis added).

The USDA declined to appeal, but it alerted the retailers who had provided the data so that they could consider intervening to pursue the case further. The Food Marketing Institute, a trade association representing grocery retailers, answered the call. It successfully moved to intervene under Federal Rule of Civil Procedure 24(a) and then filed its own appeal. Meanwhile, the USDA assured the district court that it would not disclose the retailers' data pending appeal. Before the Eighth Circuit, the Institute argued that the court should discard the "substantial competitive harm" test and apply instead the ordinary public meaning of the statutory term "confidential." The court rejected that argument and affirmed. We granted the Institute a stay of the Eighth Circuit's mandate and, later, its petition for certiorari. 585 U. S. 1055 (2018); 586 U. S. 1112 (2019).

II

Before turning to the merits, we confront a threshold challenge to our jurisdiction: Argus Leader questions whether the Institute has standing to pursue this appeal. To show standing under Article III, an appealing litigant must demonstrate that it has suffered an actual or imminent injury that is "fairly traceable" to the judgment below and that could be "redress[ed] by a favorable ruling." *Monsanto Co.* v. *Geertson Seed Farms*, 561 U. S. 139, 149–150 (2010).

The Institute satisfies each of these criteria. Whether or not disclosure of the contested data would cause its member retailers "substantial competitive harm," the record before us reveals (and Argus Leader does not meaningfully dispute) that disclosure likely would cause them *some* financial injury. As the Eighth Circuit observed, the grocery industry is "highly competitive," and disclosure of store-level SNAP data likely would help competitors win business from the Institute's members. 889 F. 3d, at 916. This concrete injury is, as well, directly traceable to the judgment ordering disclosure. And a favorable ruling from this Court would redress the retailers' injury by reversing that judgment.

Argus Leader insists that the Institute's injury is not redressable because a favorable ruling would merely restore the government's *discretion* to withhold the requested data under Exemption 4, and it might just as easily choose to provide the data anyway. But the government has represented unequivocally that, consistent with its longstanding policy and past assurances of confidentiality to retailers, it "will not disclose" the contested data unless compelled to do so by the district court's order. Brief for United States as *Amicus Curiae* 35; accord, Tr. of Oral Arg. 18–22. A reversal here thus would ensure exactly the relief the Institute requests. That is enough to satisfy Article III. *Monsanto*, 561 U. S., at 152–153.

III

A

As we've seen, Exemption 4 shields from mandatory disclosure "commercial or financial information obtained from a person and privileged or confidential." 5 U. S. C. § 552(b)(4). But FOIA nowhere defines the term "confidential." So, as usual, we ask what that term's "ordinary, contemporary, common meaning" was when Congress enacted FOIA in 1966. *Perrin* v. *United States*, 444 U. S. 37, 42 (1979). We've done the same with other undefined terms in FOIA. See, *e. g.*, *Milner* v. *Department of Navy*, 562 U. S. 562, 569 (2011); *United States* v. *Weber Aircraft Corp.*, 465 U. S. 792, 804 (1984).

The term "confidential" meant then, as it does now, "private" or "secret." Webster's Seventh New Collegiate Dictionary 174 (1963). Contemporary dictionaries suggest two conditions that might be required for information communicated to another to be considered confidential. In one sense, information communicated to another remains confidential whenever it is customarily kept private, or at least closely held, by the person imparting it. See, *e. g.*, Webster's Third New International Dictionary 476 (1961) ("known only to a limited few" or "not publicly disseminated"); Black's Law Dictionary 370 (rev. 4th ed. 1968) ("intended to be held in confidence or kept secret"). In another sense, information might be considered confidential only if the party receiving it provides some assurance that it will remain secret. See, *e. g.*, 1 Oxford Universal Dictionary Illustrated 367 (3d ed. 1961) ("spoken or written in confidence"); Webster's New World Dictionary 158 (1960) ("told in confidence").

Must both of these conditions be met for information to be considered confidential under Exemption 4? At least the first condition has to be; it is hard to see how information could be deemed confidential if its owner shares it freely. And there's no question that the Institute's members satisfy this condition; uncontested testimony established that the Institute's retailers customarily do not disclose store-level SNAP data or make it publicly available "in any way." See, *e. g.*, App. 93–94. Even within a company, witnesses testified, only small groups of employees usually have access to it. But what about the second condition: Can privately held information *lose* its confidential character for purposes of Exemption 4 if it's communicated to the government without assurances that the government will keep it private? As it turns out, there's no need to resolve that question in this case because the retailers before us clearly satisfy this condition too. Presumably to induce retailers to participate in SNAP and provide store-level information it finds useful to its adminstration of the program, the government has long promised them that it will keep their information private. See, *e. g.*, 43 Fed. Reg. 43275 (1978); see also Brief for United States as *Amicus Curiae* 27–30.

Early courts of appeals confronting Exemption 4 interpreted its terms in ways consistent with these understandings. In *GSA* v. *Benson*, 415 F. 2d 878, 881 (1969), for example, the Ninth Circuit concluded that Exemption 4 would " 'protect information that a private individual wishes to keep confidential for his own purposes, but reveals to the government under the express or implied promise' " of confidentiality. The D. C. Circuit similarly held that Exemption 4 covered sales documents " 'which would customarily not be released to the public' " and which the government "agreed to treat . . . as confidential." *Sterling Drug Inc.* v. *FTC*, 450 F. 2d 698, 709 (1971); see also *Grumman Aircraft Eng. Corp.* v. *Renegotiation Bd.*, 425 F. 2d 578, 580, 582 (1970) (information a private party "submitted 'in confidence' " or "would not reveal to the public [is] exempt from disclosure").

B

Notably lacking from dictionary definitions, early case law, or any other usual source that might shed light on the statute's ordinary meaning is any mention of the "substantial competive harm" requirement that the courts below found unsatisfied and on which Argus Leader pins its hopes. Indeed, when called on some years ago to interpret the similar phrase "information furnished by a confidential source" in FOIA Exemption 7(D), § 552(b)(7)(D), this Court looked, as we do now, to "common usage" and never suggested that the government must prove that the disclosure of a source's information would result in substantial harm. *Department of Justice* v. *Landano*, 508 U. S. 165, 173–174 (1993).

So where *did* the "substantial competitive harm" requirement come from? In 1974, the D. C. Circuit declared that, in addition to the requirements actually set forth in Exemption 4, a "court must also be satisfied that non-disclosure is justified by the legislative purpose which underlies the exemption." *National Parks & Conservation Assn.* v. *Morton*, 498 F. 2d 765, 767. Then, after a selective tour through the legislative history, the court concluded that "commercial or financial matter is 'confidential' [only] if disclosure of the information is likely . . . (1) to impair the Government's ability to obtain necessary information in the future; or (2) to cause substantial harm to the competitive position of the person from whom the information was obtained." *Id.*, at 770 (footnote omitted). Without much independent analysis, a number of courts of appeals eventually fell in line and adopted variants of the *National Parks* test. See *Contract Freighters, Inc.* v. *Secretary of U. S. Dept. of Transp.*, 260 F. 3d 858, 861 (CA8 2001) (collecting cases).

We cannot approve such a casual disregard of the rules of statutory interpretation. In statutory interpretation disputes, a court's proper starting point lies in a careful examination of the ordinary meaning and structure of the law itself. *Schindler Elevator Corp.* v. *United States ex rel. Kirk*, 563 U. S. 401, 407 (2011). Where, as here, that examination yields a clear answer, judges must stop. *Hughes Aircraft Co.* v. *Jacobson*, 525 U. S. 432, 438 (1999). Even those of us who sometimes consult legislative history will never allow it to be used to "muddy" the meaning of "clear statutory language." *Milner*, 562 U. S., at 572. Indeed, this Court has repeatedly refused to alter FOIA's plain terms on the strength only of arguments from legislative history. See, *e. g.*, *Landano*, 508 U. S., at 178 (refusing to expand the plain meaning of Exemption 7(D) based on legislative history); *Weber Aircraft*, 465 U. S., at 800–803 (refusing to restrict Exemption 5 based on legislative history).

National Parks' contrary approach is a relic from a "bygone era of statutory construction." Brief for United States as *Amicus Curiae* 19. Not only did *National Parks* inappropriately resort to legislative history before consulting the statute's text and structure, once it did so it went even further astray. The court relied heavily on statements from witnesses in congressional hearings years earlier on a different bill that was never enacted into law. 498 F. 2d, at 767–769. Yet we can all agree that "excerpts from committee hearings" are " 'among the least illuminating forms of legislative history.' " *Advocate Health Care Network* v. *Stapleton*, 581 U. S. 468, 481 (2017); see also *Kelly* v. *Robinson*, 479 U. S. 36, 51, n. 13 (1986) (declining to "accord any significance" to "comments in [legislative] hearings"). Perhaps especially so in cases like this one, where the witness statements do not comport with official committee reports that are consistent with the plain and ordinary meaning of the statute's terms. See S. Rep. No. 813, 89th Cong., 1st Sess., 9 (1965) (Exemption 4 protects information "which would customarily not be released to the public by the person from whom it was obtained" such as "business sales statistics" and "customer lists"); H. R. Rep. No. 1497, 89th Cong., 2d Sess., 10 (1966) (Exemption 4 exempts material "if it would not customarily be made public by the person from whom it was obtained by the Government" and "information which is given to an agency in confidence" such as "business sales statistics").

Unsurprisingly, *National Parks* has drawn considerable criticism over the years. See, *e. g., Critical Mass Energy Project* v. *NRC*, 931 F. 2d 939, 947 (CADC 1991) (Randolph, J., concurring) (*National Parks* was " 'fabricated . . . out of whole cloth' "); *New Hampshire Right to Life* v. *Department of Health and Human Servs.*, 577 U. S. 994 (2015) (Thomas, J., joined by Scalia, J., dissenting from denial of certiorari). Even the D. C. Circuit has distanced itself from the decision. While retaining *National Parks* principally as a matter of *stare decisis* in the context of information a private entity is *required* to provide to the government, the court has pointedly declined to extend the *National Parks* test to information provided *voluntarily* to the government under Exemption 4. There, the court has adhered to a much more traditional understanding of the statutory term "confidential," holding that information qualifies as confidential "if it is of a kind that would customarily not be released to the public by the person from whom it was obtained." *Critical Mass Energy Project* v. *NRC*, 975 F. 2d 871, 879–880 (CADC 1992) (en banc); see also *id.*, at 880–882 (Randolph, J., concurring). Nor, unbound by D. C. Circuit precedent, can we discern a persuasive reason to afford the *same* statutory term two such radically different constructions. *Ratzlaf* v. *United States*, 510 U. S. 135, 143 (1994).

C

That leaves Argus Leader to try to salvage the result, if not the reasoning, of *National Parks*. But here its arguments prove no more persuasive. The company begins by rearranging the text of Exemption 4 to create a phrase that does not appear in the statute: "confidential commercial information." Then, it suggests this synthetic term mirrors a preexisting common law term of art. And finally it asserts that the common law term covers only information whose release would lead to substantial competitive harm. But Argus Leader points to no treatise or case decided before Exemption 4's adoption that assigned any such meaning to the terms actually before us: "commercial or financial information [that is] privileged or confidential." So even accepting (without granting) that *other* phrases may carry the specialized common law meaning Argus Leader supposes, the parties have mustered no evidence that the terms of Exemption 4 did at the time of their adoption. Nor will this Court ordinarily imbue statutory terms with a specialized common law meaning when Congress hasn't itself invoked the common law terms of art associated with that meaning. See, *e. g.*, *Bruesewitz* v. *Wyeth LLC*, 562 U. S. 223, 233–235 (2011).